

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 07/29/26      TIME: 1:30 P.M.      DEPT: H      CASE NO: CV0003639

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK:

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| <p>PLAINTIFFS:      ROBERT VOG,T ET AL</p> <p style="text-align:center">vs.</p> <p>DEFENDANT:    AMERICAN HONDA<br/>MOTOR CO., INC.</p> |  |
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NATURE OF PROCEEDINGS: MOTION – ATTORNEY’S FEES

**RULING**

Plaintiffs’ motion for attorney’s fees and costs is granted in part and denied in part. Plaintiffs are awarded \$42,675 in attorney’s fees and \$5,379.71 in costs. Defendant American Honda Motor Company (“Honda”) is ordered to pay the total amount of \$48,054.71 to Plaintiff within 60 days of the date of this Order.

***Standard***

“If a buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code § 1794(d).) The buyer has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation and were reasonable in amount. (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4<sup>th</sup> 785, 817.) A reasonable hourly rate is determined by the prevailing rate charged by attorneys of similar skill and expertise in the relevant community. (See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4<sup>th</sup> 1084, 1095.)

“A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether. ‘If . . . the Court were required to award a reasonable fee when an outrageously unreasonable one has been asked for, claimants would be encouraged to make unreasonable demands, knowing that the only unfavorable consequence of such misconduct would be a reduction of their fee to what they should have asked for in the first place. To discourage such greed, a severer reaction is needful . . . .’” (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 635 [citation omitted].)

## *Discussion*

### Attorney's Fees

#### *Hourly Rates*

The hourly rates requested by Sepehr Daghighian (\$625) Michael Rosenstein (\$700), Brian Shippen-Murray (\$550), Michael Ortiz (\$525), and Kristina Kousterian (\$375) are not reasonable when reviewed against the Real Rate Report for General Liability in Los Angeles (reflecting rates of \$304 for partner and \$287 for associates). Plaintiff argues that the commercial rate should be applied and not the general liability practice rates, and that the 2021 report is outdated. This court agrees it should consider that the report reflects rates five years old, but does not agree that lemon law rates should reflect billing at the corporate rates used in commercial cases. Taking these factors into account the court reduces the rates as follows: Sepehr Daghighian (\$550) Michael Rosenstein (\$600), Brian Shippen-Murray (\$400), Michael Ortiz (\$375) and Kristina Kousterian (\$300)

#### *Attorney Hours*

Plaintiff seeks attorney's fees and costs in the amount of \$89,417.21. These fees include \$56,025 in fees as its "lodestar", \$28,012.50 for a 1.5 multiplier, and \$5,379.71 in costs.

In support of her motion, Plaintiffs contends that after Defendant Honda failed to conform their vehicle to it written warranty within a reasonable number of repair attempts or to repurchase the defective vehicle, they filed this case on August 8, 2024, alleging violations of the Song-Beverly Consumer Warranty Act (the "Act"). Both parties issued written discovery and Plaintiff took the deposition of the person most knowledgeable, and defended Plaintiff's deposition. Plaintiff further argues that it drafted a motion to compel. The parties then attended two mediations and settled for a 998 offer. Plaintiff seeks to recover for .6 hours of work for Attorney Daghighian, 19.2 hours for Michael Rosenstein, 66.6 hours for Attorney Shippen-Murray's work, 10.2 hours for Attorney Ortiz's work, and .6 hours for Kousherian's work.

Honda does not dispute that Plaintiff is the prevailing party but argues that the amount requested by Plaintiff is excessive given the fact that many tasks were secretarial tasks, and the fact that the hours billed were at the highest attorney billing rate.

The Court grants Plaintiff's motion for attorney's fees in part.

The Court declines to award a multiplier as this case was a standard lemon law case with no novel issues. The case did not carry any particular unusual risk.

The Court finds the time incurred by Plaintiff's counsel to be reasonable although it is sympathetic to Honda's argument that many of the mundane tasks were billed at a higher rate. As noted above, the Court has found the attorney hourly rates to be unreasonable and applies the rate noted above. Accordingly, the Court applies this rate to the hours identified in the Daghighian Declaration as follows: Daghighian (\$550 x .6 hours = \$330), Rosenstein (\$600 x 19.2 hours = \$11,520), Shippen-Murray (\$400 x 66.6 hours = \$26,640), Ortiz (\$375 x 10.2

hours = \$3,825), Kousherian (\$300 x .6 hours = \$180) for a total of \$42,675. Plaintiff is therefore awarded \$42,675 in attorney's fees.

Costs

While the usual method to recover costs as a prevailing party is by filing a Memorandum of Costs pursuant to California Rule of Court 3.1700, here the parties agreed by the language of their settlement agreement that Plaintiff would do so by motion along with their request for fees. The Court awards the \$5,379.71 in costs requested, which are not challenged by Honda.

***All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.***

***The Zoom appearance information for July, 2026 is as follows:***

***<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHnzEGafG.1>***

***Meeting ID: 161 548 7764***

***Passcode: 502070***

***If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>***

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 07/29/26      TIME: 1:30 P.M.      DEPT: H      CASE NO: CV0003911

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK:

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| <p>PLAINTIFFS:      JACKIE LIN, ET AL</p> <p style="text-align:center">vs.</p> <p>DEFENDANT:    PETALUMA PEOPLE<br/>SERVICE CENTER, ET AL</p> |  |
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NATURE OF PROCEEDINGS: MOTION – PRO HAC VICE

**RULING**

The unopposed application of Kristiana Zuccarini to appear as counsel pro hac vice is granted.

***All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.***

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